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The Round Table: ten seats, one problem statement

One page handed back. Nothing here is collected or marked.

You will be given one seat. You argue from inside it for the whole session, including the parts that make you look unreasonable.

What the Round Table is, and why it is not a breakout

In an ordinary breakout everybody argues from where they already stand. The strongest personality wins, the quiet objection is never heard, and the room leaves with a better version of the view it walked in with.

The Round Table removes that. You are handed a position you did not choose, along with the incentives and the measure that make it reasonable. You cannot retreat into your own opinion, because your own opinion is not in the room.

The point is not to win your seat. The point is that by the end you can state somebody else's objection better than they can, and you have found out which objections you had been quietly discounting.

The situation on the table

Apple Card, issued by Goldman Sachs Bank and branded by Apple. Everything below is public and dated.

When	What happened
August 2019	The card launches. Goldman Sachs Bank underwrites it and owns the credit decision. Apple brands it, owns the experience in the wallet, and owns the customer relationship. The decision and the relationship sit in different companies.
November 2019	A software engineer posts that his credit limit is 20 times his wife's, on joint tax returns, in a community-property state, with her holding the higher credit score. Steve Wozniak replies that his was 10 times his wife's. The answer from support: "this is just how it is and you just have to accept that." New York's financial regulator opens an investigation.
March 2021	The regulator finds NO unlawful discrimination, after several thousand pages, written responses from both firms, witness and applicant interviews, and underwriting data for about 400,000 New York applicants. Men and women with similar credit profiles generally received similar outcomes, and the decisions complained of were explainable, lawful and consistent with credit policy. The same report finds that weak customer service and a perceived lack of transparency reduced consumer trust in the fairness of credit decisions.

October 2024	The consumer regulator orders about $89 million: $45m in penalties plus $20m in redress from the bank, and $25m from the brand partner. Disputed transactions not processed, disputes passed across and never investigated, credit reports damaged, and interest charged to customers who expected automatic interest-free financing. Hundreds of thousands of cardholders affected. The director's words: "not mere technicalities... real harm to real people."
2025	The bank exits the partnership. Another issuer takes the card over in a reported two-year transition.

The one line that makes this worth the room

The model was cleared and the programme was not. A regulator read the underwriting of 400,000 applicants and found nothing unlawful, and the same programme went on to cost $89 million and the partnership. Nothing that followed was a credit model problem.

What is still not published, which is where your problem is hiding

- What a customer was actually told when they asked why, and who owned that answer.
- Whether an explanation of an individual decision existed anywhere in the chain at all, in a form a person on a phone could use.
- How many customers asked for a reason and did not get one. Nobody counted.

Sources: New York Department of Financial Services report and press release, 23 March 2021. Consumer Financial Protection Bureau order and contemporary reporting, 23 October 2024. Reporting of the November 2019 posts, and of the 2025 transition.

The request that has landed on your desk

"Everyone here has a different theory about what went wrong. Get them in a room and come back with one problem statement we can act on."

- You are NOT being asked to judge the model. A regulator already did.
- You are NOT being asked whether the regulator was right. That is settled and it is not your question.
- You ARE being asked what the problem was, in words the chief executive and the disputes lead would both recognise.

The ten seats

Seven are always filled. Seats 8, 9 and 10 are optional: if your pod is smaller, drop them from the bottom up. Take one seat, read only yours, and stay in it.

1. Chief Executive, the bank

You are measured on: The consumer strategy, the partnership, the board

Your opening position, which you must defend before you are allowed to move:

"This card was how we entered consumer banking. The problem is that we bought a brand relationship we did not control and a service operation we had never run before."

- You still think entering consumer banking was right, and you are not going to disown it.
- You will accept a statement that says the company took on an operation it was not built for. You will resist one that says the decision was reckless.
- Press the others on: which part of this would have gone wrong with any partner, and which part was specific to ours?

2. Head of Credit Underwriting

You are measured on: Approval rates, loss rates, fair lending

Your opening position, which you must defend before you are allowed to move:

"The model never sees gender and I can prove it, because a regulator just did, over 400,000 applicants. What I could never do was tell one customer why she got what she got."

- You are vindicated and you are not comfortable, and both of those are true at once.
- You can explain any decision to an examiner with the policy in front of you. You cannot explain one to a person on the phone in thirty seconds, and nobody ever asked you to be able to.
- Press the others on: what exactly did you want me to say to her, and who was going to write it?

3. Head of Data Science

You are measured on: Model performance, drift, fairness testing

Your opening position, which you must defend before you are allowed to move:

"Every fairness test we run passes and they passed then. If there was harm, it happened somewhere I was never asked to instrument."

- You are not defensive and you are not the villain. You measured exactly what you were asked to.
- You can build any measure the room names, and you should offer to, specifically.
- Press the others on: name the number you wanted and I will tell you whether it is buildable.

4. Chief Risk and Compliance Officer

You are measured on: Regulatory findings, complaints upheld

Your opening position, which you must defend before you are allowed to move:

"We were examined and cleared on lending, then fined on handling. I was asked to sign off a model. Nobody asked me to sign off the explanation that goes with it."

- You distinguish law from contract from policy better than anyone at the table. Use that constantly.
- You are the one who should notice that the two regulatory events were about completely different things, and that the second one was the expensive one.
- Press the others on: which of the things we keep calling policy is actually law?

5. Head of Service and Disputes

You are measured on: Handling time, resolution rate, backlog

Your opening position, which you must defend before you are allowed to move:

"My people were handed a decision they could not see inside and a script that said it is the algorithm. Then the disputes queue broke, and that is the one that actually cost us."

- You have the earliest evidence in the room and the least authority. Say it early anyway.
- You raised the explanation problem in 2019 and the dispute backlog later, and both went into a queue of their own.
- Press the others on: who was I supposed to escalate this to, and would they have acted?

6. Product Lead, the brand partner

You are measured on: The brand, the experience in the wallet

Your opening position, which you must defend before you are allowed to move:

"Our name is on the card. Our customers blame us for a decision we do not make and cannot see. That is not a communications problem and I will not accept it as one."

- You represent a company that owns the relationship and not the decision. That split is your whole argument.
- You want the problem statement to name the boundary between the two firms, not to apportion blame.
- Press the others on: when a customer asks us why, whose sentence is it?

7. General Counsel

You are measured on: Examinations, consent orders, exposure

Your opening position, which you must defend before you are allowed to move:

"A regulator never asks whether it is accurate. It asks you to show why this person got this. We could not, and being right in the end did not help us at all."

- You care about what is defensible, which is not the same as what is correct, and you should say so in exactly those words.
- You will object to any statement that rests on having been cleared. Being cleared is what the record says and it is not what the outcome was.
- Press the others on: if this happened again tomorrow, what could we put in front of an examiner that we could not put there then?

8. Head of Communications [OPTIONAL SEAT]

You are measured on: The public story

Your opening position, which you must defend before you are allowed to move:

"One post made this a national story in a day. The finding that cleared us arrived sixteen months later and almost nobody read it."

- You are not asking for better messaging. You are pointing out that the timeline is asymmetric and always will be.
- You push the room to notice that the explanation had to exist before the story, not after.
- Press the others on: what could we have published on day two that was true?

9. Consumer Advocacy Lead [OPTIONAL SEAT]

You are measured on: Access, trust, vulnerable customers

Your opening position, which you must defend before you are allowed to move:

"The finding says the decisions were explainable. Explainable to a regulator and explainable to the person on the phone are two different products, and we only ever built one."

- You attack the word explainable, not the model. That distinction is the most useful thing you bring.
- You want the missing signal to be about customers who asked why and did not get an answer.
- Press the others on: did we ever count the people who asked for a reason?

10. Investor Relations [OPTIONAL SEAT]

You are measured on: The story told to the market

Your opening position, which you must defend before you are allowed to move:

"I am explaining a fine, an exit and a provision against a consumer strategy we announced from a stage."

- You hold the gap between what was promised publicly and what the room concludes.
- You will object to any statement that quietly contradicts a published position without saying so.
- Press the others on: does our statement require us to retract anything we have said out loud?

What your pod hands back

One page, four sections. A problem statement, not a solution and not a risk list. It has to be true from inside more than one of those ten seats.

Section	It counts as done only if it contains this
1. The statement	One sentence. The business cost or risk, in words the chief executive and the disputes lead would both recognise, with NO technology named. Not "the model was opaque". What was lost, to whom, and how it showed up.
2. The constraint you accepted	The one constraint your statement treats as fixed, classified as law, contract, policy or merely habit, plus the seat that would have to move for it to change.
3. The signal that was missing	The single number that, had it been on somebody's screen, would have surfaced this before it became public, plus the seat from the ten that should have owned it.
4. The dissent	One named seat that still disagrees, their objection in their own words, and one line on why the pod went ahead anyway.

Then three spoken lines in the main room, in this order and nothing else: the statement, the constraint you accepted, and the dissent with the seat that holds it.

The four architecture-thinking moves this is exercising

Section	The move it is built from
1. The statement	Translating business drivers. Turning an organisational need into something you could actually design against.
2. The constraint	Trade-off analysis. Naming what is fixed, and therefore naming what you gave up by treating it as fixed.
3. The signal	Evaluation and operations. A system you cannot observe going wrong is a system you have decided not to govern.
4. The dissent	Holistic viewpoint. The ripple that lands on a domain nobody in the room owns.

How the room runs, in four phases

The facilitator will call the length of each phase on the day. The order never changes, and the first phase is the one most pods try to skip.

Phase	What happens
1. Silent	Read your own seat and nobody else's. Write your opening line in your own words. Do not talk. If the discussion starts before everyone has written, the pod converges on whoever spoke first and you lose most of the table.

2. Round robin	Each seat speaks once, in number order, for an equal turn called by the timekeeper. NO interruptions and NO replies. Everyone speaks once before anyone speaks twice.
3. Open	Converge and write the four sections. Nobody may propose a problem statement until every seat has spoken once. Stay in your seat while you argue.
4. Closing	Write the three spoken lines verbatim. Read them aloud once inside the pod before you read them to the room. Decide who reads.

A worked example, on this same case

This is ONE defensible answer, built from one seat's framing. It is here so you can see the shape and the length, not the content. At least four other statements are equally defensible from this table, and they are listed at the end of this section.

1. The statement

Customers who were declined, or who disputed a charge, could not get an answer from anybody, because the company that made the decision never faced the customer and the company that faced the customer could not see the decision; it cost us public trust first and an $89 million order about handling second.

Why this works: no technology is named, the cost is specific and in the firm's own terms, and both the chief executive and the disputes lead would recognise it. It passes the test that matters here, which is that it would still be true if the model had been perfect.

2. The constraint you accepted

We treated the split as fixed: the bank owns the credit decision, the brand partner owns the customer. That is CONTRACT, written into the partnership agreement, not law. Seat 1 and seat 6 would both have to move for it to change, which means our statement is choosing not to ask them.

Why this works: the constraint is named, correctly classified, and the seats that would have to move are identified. Most pods write a constraint and never say who owns it, which turns a trade-off back into an excuse. Note what it is NOT called: fair lending law is law, and the support script is policy. This one is neither.

3. The signal that was missing

The number of customers who asked for a reason and did not receive one they could act on, set against whether they later closed the account. Both halves existed, in two different companies' systems, and nobody joined them. The seat that should have owned the joined number is seat 5, Head of Service and Disputes, not the data group, because the number is about customers rather than about the model.

Why this works: one number, buildable from records that already existed, owned by a named seat. "Better transparency" would have failed. Giving it to seat 5 rather than seat 3 is the move worth noticing.

4. The dissent

Seat 2, Head of Credit Underwriting, does not accept this. In his words: "You are calling it an explanation problem, but a regulator read 400,000 files and found the decisions were explainable. What you actually want is a different product, written for a person on a phone, and nobody ever specified it or funded it." We proceeded because he is right that it was never specified, and that is precisely the gap the statement names.

Why this works: a real objection that bites, in his voice rather than reworded, with an honest reason for proceeding that does not pretend he was wrong. It also comes from the most uncomfortable seat at the table, which is usually where the best dissent lives.

The three spoken lines that pod would paste in the chat.

(*Would love to see other thoughts from different pods here rather than getting this rephrased :)*)

Three sentences. Statement first, then the constraint, then the dissent. Nothing else.

- ONE. Declined and disputing customers could not get an answer from anybody, because the company that made the decision never faced them and the company that faced them could not see the decision, and it cost us trust first and $89 million in a handling order second.
- TWO. We treated the issuer and brand-partner split as fixed. That is contract rather than law, and seat 1 and seat 6 would both have to move for it to change.

- THREE. Seat 2 dissents: the decisions were explainable to a regulator, and what we are really asking for is a product nobody ever specified or funded.

Four other statements this same table supports

Each of these is defensible from the same facts, and each one leads to a different constraint, a different signal and a different dissent. Read them, then go and find a sixth.

Framed from	The statement it produces
Seat 5, service and disputes	The service operation was sized for a product the bank had never run, and the explanation failure in 2019 was the first visible symptom of the same under-investment that produced the dispute backlog five years later.
Seat 7, general counsel	The firm could satisfy an examiner and could not satisfy a customer, and never noticed those were two different products until both regulators had already arrived.
Seat 1, chief executive	The company bought a consumer franchise whose service obligations it had never costed, and the penalty is simply the bill for that arriving late.
Seat 9, consumer advocacy	The customers who could not get a reason were disproportionately those with thin credit files, which is the group least able to argue, and nobody counted them.

Notice that not one of those five mentions the model, and that a regulator had already cleared it. That is the whole point of putting this case in front of you.

What good looks like

In this section	A strong answer has this in it
1. The statement	A sentence that would still be true if the model had been perfect. Specific enough that a listener could tell which business it is about.
2. The constraint	Correctly classified. Getting it wrong in either direction is interesting: calling a contract a law, or calling a law a habit, are both findings.
3. The signal	One number, joinable from things that already exist, owned by a named seat.
4. The dissent	An objection that genuinely bites, in the dissenter's own words, with an honest reason for proceeding anyway.
The three lines	Short, statement first, with no account of how the argument went.

What not to write

- "The algorithm was biased." A regulator examined 400,000 applicants and said otherwise. If your statement needs that to be true, it is not a problem statement, it is a disagreement with a finding.
- A statement with a technology inside it. If you can name a product or a model in it, rewrite it.
- A statement that reduces to automation against people. Nobody asked the room to choose.
- A constraint that is really a preference. "We could not change the partnership" is a contract with a renewal date.
- A constraint with no owner. If nobody could move it, it is physics, and it almost never is.
- A signal called "better monitoring" or "more transparency". Name the number.
- A signal nobody could build. If it needs data that exists nowhere, it is a wish.
- A dissent invented at the end to satisfy the brief. We can tell.
- A dissent the pod then demolishes. If you resolved it, it is not the dissent.
- Any sentence that blames the model, the vendor or the partner. None of them chose the design.
- Hindsight that was not available. You know what was public at each point and nothing more.
- A fourth spoken line. The constraint is the exercise.

The three lines, written out before you speak

Fill these in during the closing phase. Read them exactly as written.

LINE 1. The statement: the business cost or risk, no technology named.

LINE 2. The constraint you accepted, its classification, and the seat that owns it.

LINE 3. The dissent, the seat that holds it, and why you proceeded.

Pod jobs, on top of your seat

Job	What they do
Chair	Keeps the silent five minutes silent and the round robin uninterrupted. Enforces the one rule: nobody proposes a statement until every seat has spoken once.
Scribe	Writes the four sections. Does not debate while writing and does not write while debating. Still holds a seat.
Timekeeper	Calls the turn in the round robin and the change between phases, to whatever lengths the facilitator sets. Nobody else watches the clock.
Reader	Says the three lines in the main room. Decided at the start, not at the end.

House rules

- Nothing from this session is collected, marked or submitted.
- Use only the facts in this brief. No searching during the room.
- Where a number you want does not exist, write that it does not exist rather than estimating one.
- Stay in your seat even when you personally disagree with it. Especially then.
- Argue the position, never the person holding it. The seat is assigned, not chosen.
- The regulatory findings quoted here are findings, not allegations. One cleared the lending, one penalised the handling. Keep them straight, because the gap between them is the case.
- You are reasoning about real companies in public. Keep it about the decision and the evidence, not about the individuals.
- A pod that cannot converge should hand back the disagreement rather than a sentence nobody believes. That is a legitimate result and it will be the most interesting one in the room.